ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address):*

TELEPHONE NO.: FAX NO. *(Optional):*

E-MAIL ADDRESS *(Optional):*

ATTORNEY FOR *(Name):*

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SUPERIOR COURT OF CALIFORNIA, COUNTY OF

STREET ADDRESS:

MAILING ADDRESS:

CITY AND ZIP CODE:

BRANCH NAME:

☐ ESTATE ☐ CONSERVATORSHIP ☐ GUARDIANSHIP OF *(Name)*:

☐ DECEDENT ☐ CONSERVATEE ☐ MINOR

REPORT OF SALE AND PETITION FOR ORDER CONFIRMING SALE OF REAL PROPERTY

☐ **and Sale of Other Property Sold as a Unit**

CASE NUMBER:

HEARING DATE AND TIME: DEPT.:

1. **Petitioner** *(name of each):*

   is the ☐ personal representative ☐ conservator ☐ guardian of the estate of the decedent, conservatee, or minor
   ☐ purchaser (30 days have passed since the sale) *(Attach supporting declaration (Prob. Code, § 10308(b).)*

   and **requests** a court order for *(check all that apply):*

   a. confirmation of sale of the estate's interest in the real property described in Attachment 2e
   b. ☐ confirmation of sale of the estate's interest in other property sold as a unit as described in Attachment 2c.
   c. ☐ approval of commission of *(specify):* % of the amount of: $
   d. additional bond ☐ is fixed at: $ ☐ is not required.

2. **Description of property sold**

   a. Interest sold: ☐ 100% ☐ Undivided *(specify):* %
   b. ☐ Improved ☐ Unimproved
   c. ☐ Real property sold as a unit with other property *(describe in Attachment 2c).*
   d. Street address and location *(specify):*

   e. Legal description is affixed as Attachment 2e.

3. **Appraisal**

   a. Date of death of decedent or appointment of conservator or guardian *(specify):*
   b. Appraised value at above date: $
   c. Reappraised value within one year before the hearing: $ ☐ Amount includes value of other property sold as a unit. *(If more than one year has elapsed from the date in item 3a to the date of the hearing, reappraisal is required.)*
   d. Appraisal or reappraisal by probate referee ☐ has been filed ☐ will be filed
      ☐ has been waived by order dated:

4. **Manner and terms of sale**

   a. Name of purchaser and manner of vesting title *(specify):*

   b. ☐ Purchaser is the ☐ personal representative ☐ attorney for the personal representative.
   c. Sale was ☐ private ☐ public *on (date):*
   d. Amount bid: $ Deposit: $
   e. Payment ☐ Cash ☐ Credit *(specify terms on Attachment 4e.)*
   f. ☐ Other terms of sale *(specify terms on Attachment 4f.)*
   g. ☐ Mode of sale specified in will. ☐ Petitioner requests relief from complying for the reasons stated in Attachment 4g.
   h. ☐ Terms comply with Probate Code section 2542 *(guardianships and conservatorships).*

Form Adopted for Mandatory Use
Judicial Council of California
DE-260/GC-060 [Rev. January 1, 2006]

Probate Code, §§ 2540, 10308
www.courtinfo.ca.gov

☐ ESTATE ☐ CONSERVATORSHIP ☐ GUARDIANSHIP OF *(Name):*	CASE NUMBER:

5. **Commission**
   a. ☐ Sale without broker
   b. ☐ A written ☐ exclusive ☐ nonexclusive contract for commission was entered into with *(name)*:
   c. ☐ Purchaser was procured by *(name)*:
   a licensed real estate broker who is not buying for his or her account.
   d. ☐ Commission is to be divided as follows:

6. **Bond**
   a. Amount before sale: $ ☐ none.
   b. Additional amount needed: $ ☐ none.
   c. ☐ Proceeds are to be deposited in a blocked account. Receipts will be filed. *(Specify institution and location):*

7. **Notice of sale**
   a. ☐ Published ☐ Posted as permitted by Probate Code section 10301 ($5,000 or less)
   b. ☐ Will authorizes sale of the property
   c. ☐ Will directs sale of the property

8. **Notice of hearing**
   a. Special devisee:
      (1) ☐ None.
      (2) ☐ Consent to be filed.
      (3) ☐ Written notice will be given.
   b. Special notice:
      (1) ☐ None requested.
      (2) ☐ Has been or will be waived.
      (3) ☐ Required written notice will be given.
   c. Personal representative, conservator of the estate, or guardian of the estate:
      (1) ☐ Petitioner (consent or notice not required).
      (2) ☐ Consent to be filed.
      (3) ☐ Written notice will be given.

9. **Reason for sale** *(need not complete if item 7b or 7c checked)*
   a. ☐ Necessary to pay
      (1) ☐ debts
      (2) ☐ devise
      (3) ☐ family allowance
      (4) ☐ expenses of administration
      (5) ☐ taxes
   b. ☐ The sale is to the advantage of the estate and in the best interest of the interested persons.

10. **Formula for overbids**
    a. Original bid: $ _____
    b. 10% of first $10,000 of original bid: $ _____
    c. 5% of (original bid minus $10,000): $ _____
    d. Minimum overbid (a + b + c): $ _____

11. **Overbid.** Required amount of first overbid *(see item 10)*: $ _____

12. **Petitioner's efforts** to obtain the highest and best price reasonably attainable for the property were as follows *(specify activities taken to expose the property to the market, e.g., multiple listings, advertising, open houses, etc.):*

13. Number of pages attached: ____

Date:

(TYPE OR PRINT NAME OF ATTORNEY)

(SIGNATURE OF ATTORNEY*)

* (Signature of all petitioners also required (Prob. Code, § 1020).)

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

(TYPE OR PRINT NAME OF PETITIONER)

(SIGNATURE OF PETITIONER)

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